

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

CASE OF KHASANOVA AND OTHERS v. RUSSIA

(Applications nos. 198/20 and 15 others –
see appended list)

JUDGMENT

STRASBOURG

10 November 2022

This judgment is final but it may be subject to editorial revision.



In the case of Khasanova and Others v. Russia,

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

Darian Pavli*, President,*

Andreas Zünd*,*

Frédéric Krenc*, judges,*

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 20 October 2022,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The applicants were represented by Memorial Human Rights Centre, an NGO currently de-registered in Moscow.

3. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

4. The list of applicants and the relevant details of the applications are set out in the appended table.

5. The applicants complained of the unlawful detention (deprivation of liberty). They also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

6. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. ALLEGED VIOLATION OF ARTICLE 5 § 1 OF THE CONVENTION

7. The applicants complained that the administrative escorting and arrest procedures and their ensuing detention had been in contravention of Article 5 § 1 of the Convention, which, in so far as relevant, reads as follows:

> "1. Everyone has the right to liberty and security of person. No one shall be deprived of his liberty save in the following cases and in accordance with a procedure prescribed by law:

...

(c) the lawful arrest or detention of a person effected for the purpose of bringing him before the competent legal authority on reasonable suspicion of having committed an offence or when it is reasonably considered necessary to prevent his committing an offence or fleeing after having done so; ...”

8. The Court has previously examined complaints brought by persons arrested and detained in similar circumstances in Russia. Having examined the applicable domestic regulations, the Court established that, under the Russian law, the escorting to a police station and ensuing detention there for the purpose of preparing an administrative arrest record would be permissible only if such record could not be drawn up at the place where the alleged offence had been discovered. The law also required that such escorting and detention be an “exceptional case” and necessary for the prompt and proper examination of the alleged administrative case or to secure the enforcement of any penalty to be imposed (see, for example, *Navalnyy v. Russia* [GC], nos. 29580/12 and 4 others, § 71, 15 November 2018). The authorities’ failure to comply with those requirements, in the Court’s view, led to it finding a violation of Article 5 § 1 of the Convention (see, in particular, *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019).

9. Having examined all the material submitted to it, including having looked at the compliance with the six-month period under Article 35 § 1 of the Convention (see *Saakashvili v. Georgia* (dec.), nos. 6232/20 and 22394/20, §§ 46-59, 1 March 2022, in which the Court addressed the COVID-related extension of the period in question and concluded that it should be exceptionally considered to have been suspended for three calendar months in total whenever it either started to run or was due to expire at any time between 16 March and 15 June 2020), the Court has not found any fact or argument capable of persuading it to reach a different conclusion on the admissibility and merits of these complaints. The Court discerns nothing in the official records submitted for it to conclude that recourse to such procedures was justified, as required by the Russian law. It concludes that the national authorities failed to comply with applicable rules of domestic procedure and considers that the applicants’ arrest and detention were not “in accordance with a procedure prescribed by law”.

10. These complaints are therefore admissible and disclose a breach of Article 5 § 1 of the Convention.

III. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

11. The applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they

inadmissible on any other ground. Accordingly, they must be declared admissible. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its well-established case-law (see *Frumkin v. Russia*, no. 74568/12, 5 January 2016, concerning disproportionate measures taken by the authorities against organisers and participants of public assemblies; *Lashmankin and Others v. Russia*, nos. 57818/09 and 14 others, 7 February 2017, related to restrictions on location, time or manner of conduct of public events; and *Karelin v. Russia*, no. 926/08, 20 September 2016, concerning examination of criminal cases in the absence of a prosecuting party in the judicial proceedings governed by the Federal Code of Administrative Offences).

IV. APPLICATION OF ARTICLE 41 OF THE CONVENTION

12. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

13. Regard being had to the documents in its possession and to its case-law (see, in particular, *Biryuchenko and Others v. Russia* [Committee], no. 1253/04 and 2 others, § 96, 11 December 2014), the Court considers it reasonable to award the sums indicated in the appended table.

14. The Court further considers it appropriate that the default interest rate should be based on the marginal lending rate of the European Central Bank, to which should be added three percentage points.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Declares* the applications admissible;

3. *Holds* that these applications disclose a breach of Article 5 § 1 of the Convention concerning the unlawful detention (deprivation of liberty);

4. *Holds* that there has been a violation of the Convention as regards the other complaints raised under well-established case-law of the Court (see appended table);

5. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the

currency of the respondent State at the rate applicable at the date of settlement;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 10 November 2022, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Darian Pavli
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 5 § 1 of the Convention (unlawful detention (deprivation of liberty))

No.	Application no. Date of introduction	Applicant's name Year of birth	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	198/20 18/12/2019	**Natalya Valeryevna KHASANOVA** 1970	03/08/2019	03/08/2019	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (*Korneyeva,* cited above). Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018).	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative offence proceedings, Art. 11 (1) - restrictions on location, time or manner of conduct of public events - Under Article 20.2 § 5 of CAO, the app. was sentenced to the administrative fine of RUB 10,000 for participating in the demonstration for fair elections to Mosgorduma on 03/08/2019. Final decision - 12/09/2019, Moscow City Court	3,900
2.	200/20 18/12/2019	**Roman Nailevich KHAMIDULLOV** 1988	03/08/2019	03/08/2019	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (*Korneyeva,* cited above), Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (*Tsvetkova and Others*, cited above).	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative offence proceedings, Art. 11 (1) - restrictions on location, time or manner of conduct of public events - Under Article 20.2 § 5 of CAO, the app. was sentenced to the administrative fine of RUB 10,000 for participating in the demonstration for fair elections to Mosgorduma on 03/08/2019. Final decision - 10/09/2019, Moscow City Court	3,900
3.	205/20 18/12/2019	**Nataliya Mikhaylovna KAPRANOVA** 1959	03/08/2019	03/08/2019	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (*Korneyeva,* cited above),	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative offence proceedings, Art. 11 (1) - restrictions on location, time or manner of conduct of public events - Under Article 20.2 § 5 of CAO, the app. was sentenced to the administrative	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
					Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (*Tsvetkova and Others*, cited above).	fine of RUB 10,000 for participating in the demonstration for fair elections to Mosgorduma on 03/08/2019. Final decision - 02/10/2019, Moscow City Court.	
4.	8484/20 03/02/2020	**Maksim Andreyevich PONOMAREV** 1994	03/08/2019	03/08/2019	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (*Korneyeva*, cited above).	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative offence proceedings, Art. 11 (1) - restrictions on location, time or manner of conduct of public events - Under Article 20.2 § 5 of CAO, the app. was sentenced to the administrative fine of RUB 10,000 for participating in the demonstration for fair elections to Mosgorduma on 03/08/2019. Final decision - 08/10/2019, Moscow City Court.	3,900
5.	12778/20 02/03/2020	**Yelena Nikolayevna SHEVCHENKO** 1985	27/07/2019, 3:55 p.m.	27/07/2019, 9:00 p.m.	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (*Korneyeva*, cited above), Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (*Tsvetkova and Others*, cited above).	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings, Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Manifestation for fair elections to Mosgorduma, Moscow, 27/07/2019. Conviction under Article 20.2 § 5 of CAO with fine of RUB 15,000. Moscow City Court, 30/08/2019.	3,900
6.	13337/20 03/03/2020	**Grigoriy Aleksandrovich RAZUVAYEV** 1987	27/07/2019, 1:45 p.m.	27/07/2019, 6:00 p.m.	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (*Korneyeva*, cited above), Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (*Tsvetkova and Others*, cited above)	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings, Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Manifestation for fair elections to Mosgorduma, Moscow, 27/07/2019. Conviction under Article 20.2 § 5 of CAO with fine of RUB 12,000. Moscow City Court, 12/09/2019.	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
7.	13348/20 03/03/2020	**Eduard Vasilyevich SOLOGUBOV** 1964	27/07/2019, 3:10 p.m.	27/07/2019, 10:00 p.m.	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (*Korneyeva*, cited above), Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (*Tsvetkova and Others*, cited above).	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings, Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Manifestation for fair elections to Mosgorduma, Tverskaya str., Moscow, 27/07/2019. Conviction under Article 20.2 5 of CAO with fine of RUB 15,000, Moscow City Court, 04/09/2019.	3,900
8.	13356/20 03/03/2020	**Roman Ivanovich GALKIN** 1980	27/07/2019, 3:50 p.m.	27/07/2019, 6:45 p.m.	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (*Korneyeva*, cited above).	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings, Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Manifestation for fair elections to Mosgorduma, Tverskaya str., Moscow, 27/07/2019. Conviction under Article 20.2 § 5 of CAO with fine of RUB 10,000. Moscow City Court, 04/09/2019	3,900
9.	13446/20 03/03/2020	**Andrey Yuryevich KUZKIN** 1985	27/07/2019, 01:50 p.m.	28/07/2019, 00:05 a.m.	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (*Korneyeva*, cited above), Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (*Tsvetkova and Others*, cited above)	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in administrative-offence proceedings, Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Manifestation for fair elections to Mosgorduma, Strastnoy boulevard, Moscow, 27/07/2019. Conviction under Article 20.2 § 5 of CAO with fine of RUB 10,000. Moscow City Court, 12/09/2019	3,900
10.	13450/20 03/03/2020	**Nikita Yuryevich KANUNNIKOV** 1987	27/07/2019, 1.50 p.m.	28/07/2019, 12.10 a.m.	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in administrative-offence proceedings, Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies -	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
					(Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (*Korneyeva*, cited above), Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (*Tsvetkova and Others*, cited above).	Manifestation for fair elections to Mosgorduma, Strastnoy boulevard, Moscow on 27/07/2019; convicted under Article 20.2 § 5 of CAO, fine of RUB 15,000; final - Moscow City Court, 24/09/2019.	
11.	17982/20 23/03/2020	**Fedor Andreyevich KARPUKHIN** 1985	27/07/2019, 8.10 p.m.	29/07/2019, 9.30 p.m.	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (*Korneyeva*, cited above), Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (*Tsvetkova and Others*, cited above), Detention as an administrative suspect: the applicant remained in detention after the offence record had been compiled (*Korneyeva*, cited above, § 35).	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative proceedings, Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Manifestation for fair elections to Mosgorduma in Moscow on 27/07/2019; convicted under article 20.2 § 6.1 of CAO; fine of RUB 10,000; final - Moscow City Court,18/09/2019.	3,900
12.	18097/20 11/03/2020	**Iya Sergeyevna TSOY** 1972	27/07/2019, 1.25 p.m.	27/07/2019, 8.20 p.m.	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (*Korneyeva*, cited above), Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (*Tsvetkova and Others*, cited above).	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative proceedings, Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Manifestation for fair elections to Mosgorduma in Moscow on 27/07/2019; convicted under article 20.2 § 5 of CAO fine of RUB 15,000; final - Moscow City Court, 16/09/2019.	3,900

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13.	18170/20 11/03/2020	**Yevgeniy Markovich LISNEVSKIY** 1975	27/07/2019, 4.30 p.m.	27/07/2019, 9.30 p.m.	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (*Korneyeva*, cited above), Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (*Tsvetkova and Others*, cited above).	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative proceedings, Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Manifestation for fair elections to Mosgorduma in Moscow on 27/07/2019; convicted under article 20.2 § 5 of CAO; fine of RUB 15,000; final - Moscow City Court, 30/09/2019.	3,900
14.	18175/20 11/03/2020	**Aleksandr Valentinovich BOBUROV** 1972	27/07/2019, 2.30 p.m.	27/07/2019, 10.00 p.m.	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (*Korneyeva*, cited above), Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (*Tsvetkova and Others*, cited above)/	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative proceedings, Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Manifestation for fair elections to Mosgorduma in Moscow on 27/07/2019; convicted under article 20.2 § 5 of CAO; fine of RUB 19,000; final - Moscow City Court, 18/09/2019.	3,900
15.	18231/20 19/03/2020	**Roman Yevgenyevich GODOV** 1974	27/07/2019, 2.30 p.m.	27/07/2019, 8.30 p.m.	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (*Korneyeva*, cited above), Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (*Tsvetkova and Others*, cited above).	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative proceedings, Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Manifestation for fair elections to Mosgorduma in Moscow (Tverskaya street) on 27/07/2019; convicted under article 20.2 § 5 of CAO; fine of RUB 15,000; final - Moscow City Court, 04/10/2019.	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
16.	18234/20 19/03/2020	**Roman Aleksandrovich FABRIKA** 1979	27/07/2019, 6.40 p.m.	28/07/2019, 1.15 a.m.	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (*Korneyeva*, cited above), Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (*Tsvetkova and Others*, cited above).	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative proceedings, Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Manifestation for fair elections to Mosgorduma in Moscow on 27/07/2019; convicted under article 20.2 § 5 of CAO; fine of RUB 10,000; final - Moscow City Court, 08/10/2019.	3,900

[1] Plus any tax that may be chargeable to the applicants.